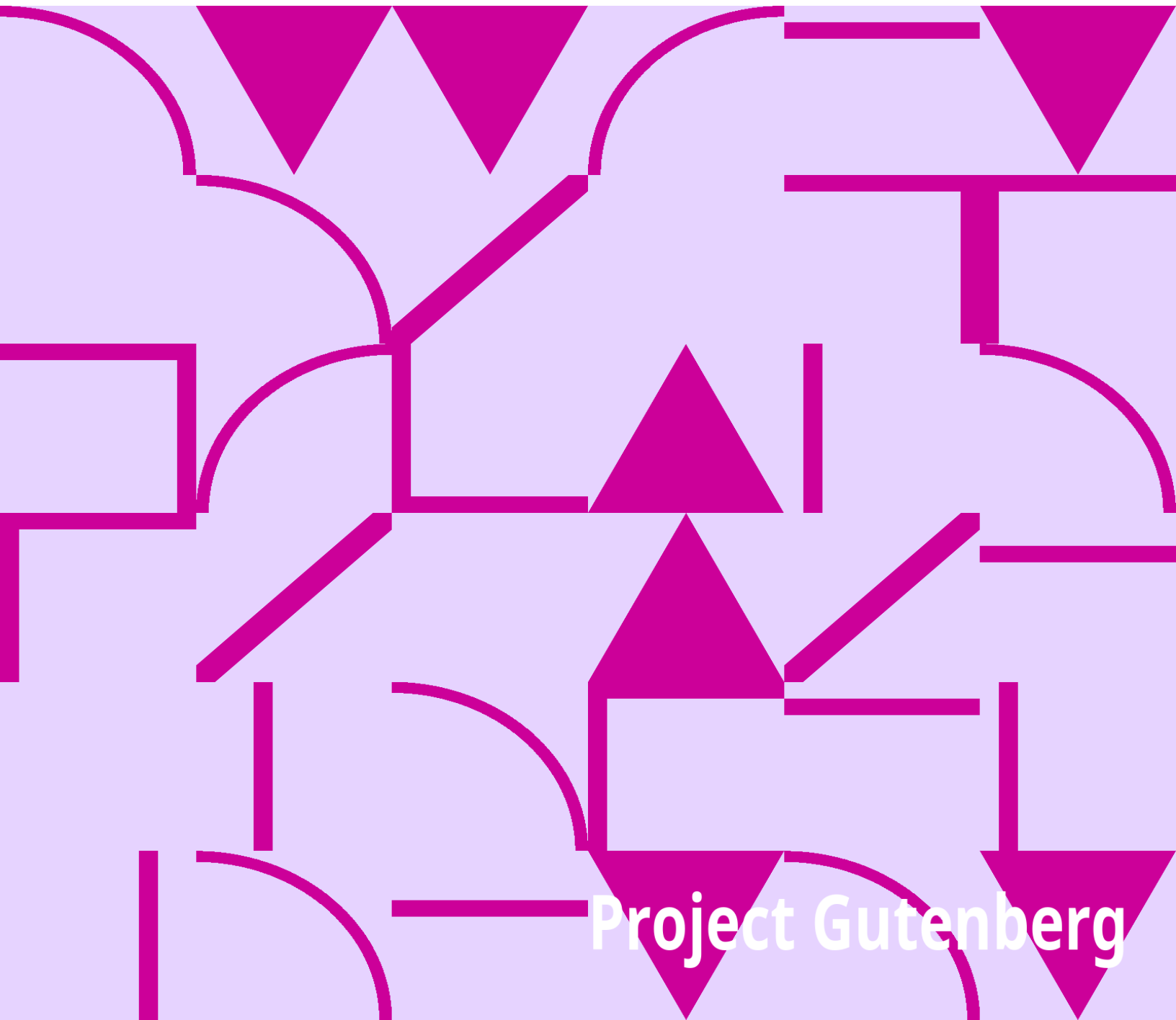


# Issues in Population and Bioethics

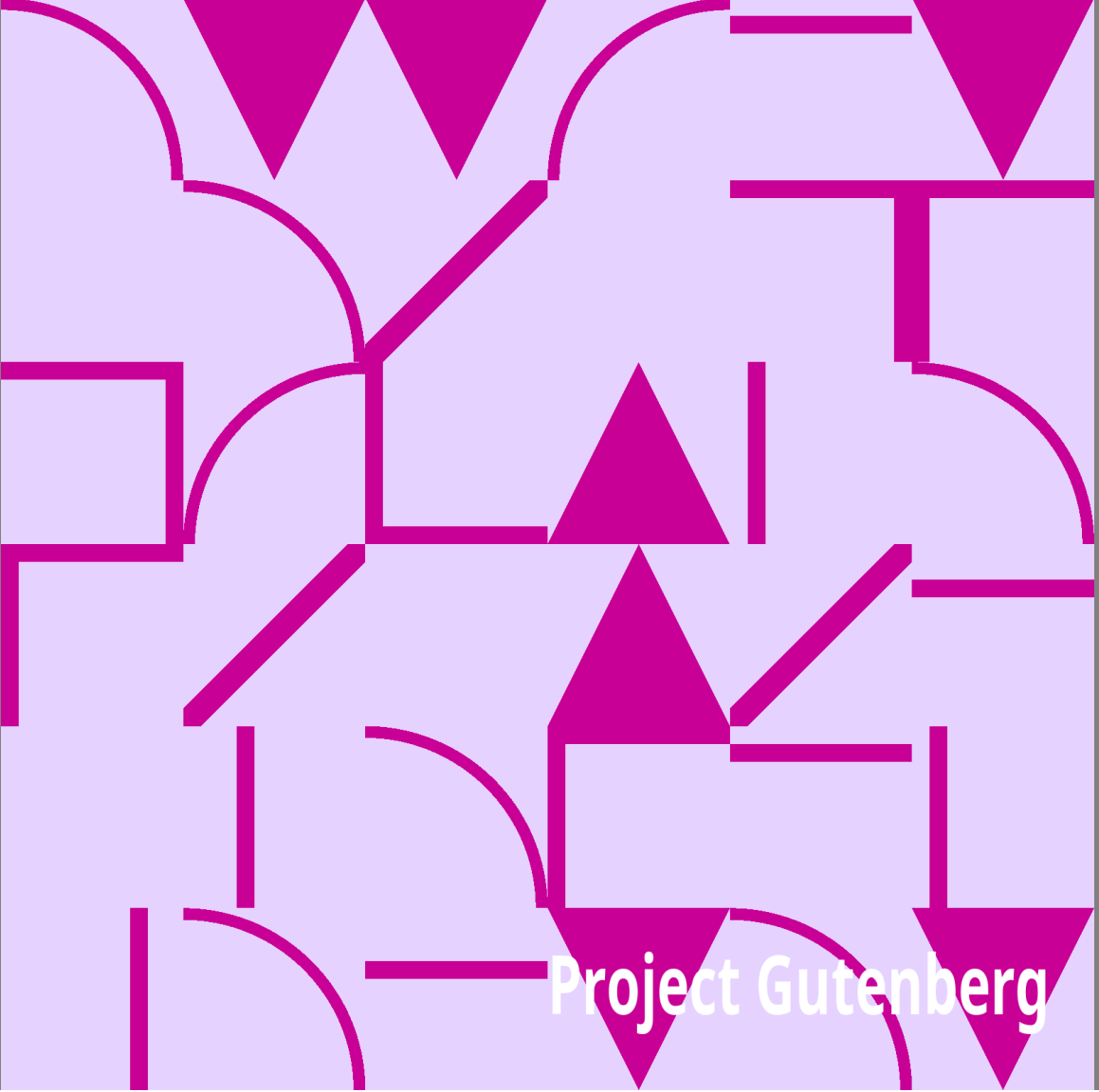
Samuel Vaknin and Lidija Rangelovska



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Samuel Vaknin and Lidija Rangelovska



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And Then There Were Too Many

By: Sam Vaknin

The latest census in Ukraine revealed an apocalyptic drop of 10% in its population - from 52.5 million a decade ago to a mere 47.5 million last year. Demographers predict a precipitous decline of one third in Russia's impoverished, inebriated, disillusioned, and ageing citizenry. Births in many countries in the rich, industrialized, West are below the replacement rate. These bastions of conspicuous affluence are shriveling.

Scholars and decision-makers - once terrified by the Malthusian dystopia of a "population bomb" - are more sanguine now. Advances in agricultural technology eradicated hunger even in teeming places like India and China. And then there is the old idea of progress: birth rates tend to decline with higher education levels and growing incomes. Family planning has had resounding successes in places as diverse as Thailand, China, and western Africa.

In the near past, fecundity used to compensate for infant mortality. As the latter declined - so did the former. Children are means of production in many destitute countries. Hence the inordinately large families of the past - a form of insurance against the economic outcomes of the inevitable demise of some of one's off-spring.

Yet, despite these trends, the world's populace is augmented by 80 million people annually. All of them are born to the younger inhabitants of the more penurious corners of the Earth. There were only 1 billion people alive in 1804. The number doubled a century later.

But our last billion - the sixth - required only 12 fertile years. The entire population of Germany is added every half a decade to both India and China. Clearly, Mankind's growth is out of control, as affirmed in the 1994 Cairo International Conference on Population and Development.

Dozens of millions of people regularly starve - many of them to death. In only one corner of the Earth - southern Africa - food aid is the sole subsistence of entire countries. More than 18 million people in Zambia, Malawi, and Angola survived on charitable donations in 1992. More than 10 million expect the same this year, among them the emaciated denizens of erstwhile food exporter, Zimbabwe.

According to Medecins Sans Frontiere, AIDS kills 3 million people a year, Tuberculosis another 2 million. Malaria decimates 2 people every minute. More than 14 million people fall prey to parasitic and infectious diseases every year - 90% of them in the developing countries.

Millions emigrate every year in search of a better life. These massive shifts are facilitated by modern modes of transportation. But, despite these tectonic relocations - and despite famine, disease, and war, the classic Malthusian regulatory mechanisms - the depletion of natural resources - from arable land to water - is undeniable and gargantuan.

Our pressing environmental issues - global warming, water stress, salinization, desertification, deforestation, pollution, loss of biological diversity - and our ominous social ills - crime at the forefront - are traceable to one, politically incorrect, truth:

There are too many of us. We are way too numerous. The population load is unsustainable. We, the survivors, would be better off if others were to perish. Should population growth continue unabated - we are all doomed.

Doomed to what?

Numerous Cassandras and countless Jeremiads have been falsified by history. With proper governance, scientific research, education, affordable medicines, effective family planning, and economic growth - this planet can support even 10-12 billion people. We are not at risk of physical extinction and never have been.

What is hazarded is not our life - but our quality of life. As any insurance actuary will attest, we are governed by statistical datasets.

Consider this single fact:



About 1% of the population suffer from the perniciously debilitating and all-pervasive mental health disorder, schizophrenia. At the beginning of the 20th century, there were 16.5 million schizophrenics - nowadays there are 64 million. Their impact on friends, family, and colleagues is exponential - and incalculable. This is not a merely quantitative leap. It is a qualitative phase transition.

Or this:

Large populations lead to the emergence of high density urban centers. It is inefficient to cultivate ever smaller plots of land. Surplus manpower moves to centers of industrial production. A second wave of internal migrants caters to their needs, thus spawning a service sector. Network effects generate excess capital and a virtuous cycle of investment, employment, and consumption ensues.

But over-crowding breeds violence (as has been demonstrated in experiments with mice). The sheer numbers involved serve to magnify and amplify social anomies, deviate behaviour, and antisocial traits. In the city, there are more criminals, more perverts, more victims, more immigrants, and more racists per square mile.

Moreover, only a planned and orderly urbanization is desirable. The blights that pass for cities in most third world countries are the outgrowth of neither premeditation nor method. These mega-cities are infested with non-disposed of waste and prone to natural catastrophes and epidemics.

No one can vouchsafe for a "critical mass" of humans, a threshold beyond which the species will implode and vanish.

Luckily, the ebb and flow of human numbers is subject to three regulatory demographic mechanisms, the combined action of which gives

hope.

### The Malthusian Mechanism

Limited resources lead to wars, famine, and diseases and, thus, to a decrease in human numbers. Mankind has done well to check famine, fend off disease, and staunch war. But to have done so without a commensurate policy of population control was irresponsible.

### The Assimilative Mechanism

Mankind is not divorced from nature. Humanity is destined to be impacted by its choices and by the reverberations of its actions. Damage caused to the environment haunts - in a complex feedback loop - the perpetrators.

### Examples:

Immoderate use of antibiotics leads to the eruption of drug-resistant strains of pathogens. A myriad types of cancer are caused by human pollution. Man is the victim of its own destructive excesses.

### The Cognitive Mechanism

Humans intentionally limit the propagation of their race through family planning, abortion, and contraceptives. Genetic engineering will likely intermesh with these to produce "enhanced" or "designed" progeny to specifications.

We must stop procreating. Or, else, pray for a reduction in our numbers.

This could be achieved benignly, for instance by colonizing space, or the ocean depths - both remote and technologically unfeasible possibilities.

Yet, the alternative is cataclysmic. Unintended wars, rampant disease, and lethal famines will ultimately trim our numbers - no matter how noble our intentions and how diligent our efforts to curb them.

Is this a bad thing?

Not necessarily. To my mind, even a Malthusian resolution is preferable to the alternative of slow decay, uniform impecuniosity, and perdition in instalments - an alternative made inexorable by our collective irresponsibility and denial.

Racing Down

Eugenics and the Future of the Human Species

By: Dr. Sam Vaknin

"It is clear that modern medicine has created a serious dilemma ... In the past, there were many children who never survived - they succumbed to various diseases ... But in a sense modern medicine has put natural selection out of commission. Something that has helped one individual over a serious illness can in the long run contribute to weakening the resistance of the whole human race to certain diseases. If we pay absolutely no attention to what is called hereditary hygiene, we could find ourselves facing a degeneration of the human race. Mankind's hereditary potential for resisting serious disease will be weakened."

(Jostein Gaarder in "Sophie's World", a bestselling philosophy textbook for adolescents published in Oslo, Norway, in 1991 and, afterwards, throughout the world, having been translated to dozens of languages)

The Nazis regarded the murder of the feeble-minded and the mentally insane - intended to purify the race and maintain hereditary hygiene - as a form of euthanasia.

German doctors were enthusiastic proponents of an eugenics movements rooted in 19th century social Darwinism. Luke Gormally writes, in his essay "Walton, Davies, and Boyd" (published in "Euthanasia Examined - Ethical, Clinical, and Legal Perspectives", ed. John Keown, Cambridge University Press, 1995):

"When the jurist Karl Binding and the psychiatrist Alfred Hoche published their tract *The Permission to Destroy Life that is Not Worth Living* in 1920 ... their motive was to rid society of the 'human ballast and enormous economic burden' of care for the mentally ill, the handicapped, retarded and deformed children, and the incurably ill. But the reason they invoked to justify the killing of human beings who fell into these categories was that the lives of such human beings were 'not worth living', were 'devoid of value'"

It is this association with the hideous Nazi regime that gave eugenics - a term coined by a relative of Charles Darwin, Sir Francis Galton, in 1883 - its bad name. Richard Lynn, of the University of Ulster of North Ireland, thinks that this recoil resulted in "Dysgenics - the genetic deterioration of modern (human) population", as the title of his controversial tome puts it.

The crux of the argument for eugenics is that a host of technological, cultural, and social developments conspired to give rise to negative selection of the weakest, least intelligent, sickest, the habitually criminal, the sexually deviant, the mentally-ill, and the least adapted.

Contraception is more widely used by the affluent and the well-educated than by the destitute and dull. Birth control as practiced in places like China

distorted both the sex distribution in the cities - and increased the weight of the rural population (rural couples in China are allowed to have two children rather than the urban one).

Modern medicine and the welfare state collaborate in sustaining alive individuals - mainly the mentally retarded, the mentally ill, the sick, and the genetically defective - who would otherwise have been culled by natural selection to the betterment of the entire species.

Eugenics may be based on a literal understanding of Darwin's metaphor.

The 2002 edition of the Encyclopedia Britannica has this to say:

"Darwin's description of the process of natural selection as the survival of the fittest in the struggle for life is a metaphor. "Struggle" does not necessarily mean contention, strife, or combat; "survival" does not mean that ravages of death are needed to make the selection effective; and "fittest" is virtually never a single optimal genotype but rather an array of genotypes that collectively enhance population survival rather than extinction. All these considerations are most apposite to consideration of natural selection in humans. Decreasing infant and childhood mortality rates do not necessarily mean that natural selection in the human species no longer operates. Theoretically, natural selection could be very effective if all the children born reached maturity.

Two conditions are needed to make this theoretical possibility realized: first, variation in the number of children per family and, second, variation correlated with the genetic properties of the parents. Neither of these conditions is farfetched."

The eugenics debate is only the visible extremity of the Man vs. Nature conundrum. Have we truly conquered nature and extracted ourselves from

its determinism? Have we graduated from natural to cultural evolution, from natural to artificial selection, and from genes to memes?

Does the evolutionary process culminate in a being that transcends its genetic baggage, that programs and charts its future, and that allows its weakest and sickest to survive? Supplanting the imperative of the survival of the fittest with a culturally-sensitive principle may be the hallmark of a successful evolution, rather than the beginning of an inexorable decline.

The eugenics movement turns this argument on its head. They accept the premise that the contribution of natural selection to the makeup of future human generations is glacial and negligible. But they reject the conclusion that, having ridden ourselves of its tyranny, we can now let the weak and sick among us survive and multiply. Rather, they propose to replace natural selection with eugenics.

But who, by which authority, and according to what guidelines will administer this man-made culling and decide who is to live and who is to die, who is to breed and who may not? Why select by intelligence and not by courtesy or altruism or church-going - or all of them together? It is here that eugenics fails miserably.

Should the criterion be physical, like in ancient Sparta? Should it be mental? Should IQ determine one's fate - or social status or wealth? Different answers yield disparate eugenic programs and target dissimilar groups in the population.

Aren't eugenic criteria liable to be unduly influenced by fashion and cultural bias? Can we agree on a universal eugenic agenda in a world as ethnically and culturally diverse as ours? If we do get it wrong - and the chances are overwhelming - will we not damage our gene pool irreparably and, with it, the future of our species?

And even if many will avoid a slippery slope leading from eugenics to active extermination of "inferior" groups in the general population - can we guarantee that everyone will? How to prevent eugenics from being appropriated by an intrusive, authoritarian, or even murderous state?

Modern eugenicists distance themselves from the crude methods adopted at the beginning of the last century by 29 countries, including Germany, The United States, Canada, Switzerland, Austria, Venezuela, Estonia, Argentina, Norway, Denmark, Sweden (until 1976), Brazil, Italy, Greece, and Spain.

They talk about free contraceptives for low-IQ women, vasectomies or tubal ligations for criminals, sperm banks with contributions from high achievers, and incentives for college students to procreate. Modern genetic engineering and biotechnology are readily applicable to eugenic projects. Cloning can serve to preserve the genes of the fittest. Embryo selection and prenatal diagnosis of genetically diseased embryos can reduce the number of the unfit.

But even these innocuous variants of eugenics fly in the face of liberalism. Inequality, claim the proponents of hereditary amelioration, is genetic, not environmental. All men are created unequal and as much subject to the natural laws of heredity as are cows and bees. Inferior people give birth to inferior offspring and, thus, propagate their inferiority.

Even if this were true - which is at best debatable - the question is whether the inferior specimen of our species possess the inalienable right to reproduce? If society is to bear the costs of over-population - social welfare, medical care, daycare centers - then society has the right to regulate procreation. But does it have the right to act discriminately in doing so?

Another dilemma is whether we have the moral right - let alone the necessary knowledge - to interfere with natural as well as social and demographic trends. Eugenacists counter that contraception and indiscriminate medicine already do just that. Yet, studies show that the more affluent and educated a population becomes - the less fecund it is. Birth rates throughout the world have dropped dramatically already.

Instead of culling the great unwashed and the unworthy - wouldn't it be a better idea to educate them (or their off-spring) and provide them with economic opportunities (euthenics rather than eugenics)? Human populations seem to self-regulate. A gentle and persistent nudge in the right direction - of increased affluence and better schooling - might achieve more than a hundred eugenic programs, voluntary or compulsory.

That eugenics presents itself not merely as a biological-social agenda, but as a panacea, ought to arouse suspicion. The typical eugenics text reads more like a catechism than a reasoned argument. Previous all-encompassing and omniscient plans tended to end traumatically - especially when they contrasted a human elite with a dispensable underclass of persons.

Above all, eugenics is about human hubris. To presume to know better than the lottery of life is haughty. Modern medicine largely obviates the need for eugenics in that it allows even genetically defective people to lead pretty normal lives. Of course, Man himself - being part of Nature - may be regarded as nothing more than an agent of natural selection. Still, many of the arguments advanced in favor of eugenics can be turned against it with embarrassing ease.

Consider sick children. True, they are a burden to society and a probable menace to the gene pool of the species. But they also inhibit further reproduction in their family by consuming the financial and mental resources of the parents. Their genes - however flawed - contribute to



genetic diversity. Even a badly mutated phenotype sometimes yields precious scientific knowledge and an interesting genotype.

The implicit Weltbild of eugenics is static - but the real world is dynamic. There is no such thing as a "correct" genetic makeup towards which we must all strive. A combination of genes may be perfectly adaptable to one environment - but woefully inadequate in another. It is therefore prudent to encourage genetic diversity or polymorphism.

The more rapidly the world changes, the greater the value of mutations of all sorts. One never knows whether today's maladaptation will not prove to be tomorrow's winner. Ecosystems are invariably comprised of niches and different genes - even mutated ones - may fit different niches.

In the 18th century most peppered moths in Britain were silvery gray, indistinguishable from lichen-covered trunks of silver birches - their habitat. Darker moths were gobbled up by rapacious birds. Their mutated genes proved to be lethal. As soot from sprouting factories blackened these trunks - the very same genes, hitherto fatal, became an unmitigated blessing. The blacker specimen survived while their hitherto perfectly adapted fairer brethren perished ("industrial melanism"). This mode of natural selection is called directional.

Moreover, "bad" genes are often connected to "desirable genes" (pleiotropy). Sickle cell anemia protects certain African tribes against malaria. This is called "diversifying or disruptive natural selection". Artificial selection can thus fast deteriorate into adverse selection due to ignorance.

Modern eugenics relies on statistics. It is no longer concerned with causes - but with phenomena and the likely effects of intervention. If the adverse traits of off-spring and parents are strongly correlated - then

preventing parents with certain undesirable qualities from multiplying will surely reduce the incidence of said dispositions in the general population. Yet, correlation does not necessarily imply causation. The manipulation of one parameter of the correlation does not inevitably alter it - or the incidence of the outcome.

Eugenicists often hark back to wisdom garnered by generations of breeders and farmers. But the unequivocal lesson of thousands of years of artificial selection is that cross-breeding (hybridization) - even of two lines of inferior genetic stock - yields valuable genotypes. Inter-marriage between races, groups in the population, ethnic groups, and clans is thus bound to improve the species' chances of survival more than any eugenic scheme.

## The Myth of the Right to Life

By: Dr. Sam Vaknin

### I. The Right to Life

Generations of malleable Israeli children are brought up on the story of the misnamed Jewish settlement Tel-Hai ("Mount of Life"), Israel's Alamo. There, among the picturesque valleys of the Galilee, a one-armed hero named Joseph Trumpeldor is said to have died, eight decades ago, from an Arab stray bullet, mumbling: "It is good to die for our country." Judaism is dubbed "A Teaching of Life" - but it would seem that the sanctity of life can and does take a back seat to some overriding values.

The right to life - at least of human beings - is a rarely questioned fundamental moral principle. In Western cultures, it is assumed to be inalienable and indivisible (i.e., monolithic). Yet, it is neither. Even if we

accept the axiomatic - and therefore arbitrary - source of this right, we are still faced with intractable dilemmas. All said, the right to life may be nothing more than a cultural construct, dependent on social mores, historical contexts, and exegetic systems.

Rights - whether moral or legal - impose obligations or duties on third parties towards the right-holder. One has a right AGAINST other people and thus can prescribe to them certain obligatory behaviors and proscribe certain acts or omissions. Rights and duties are two sides of the same Janus-like ethical coin.

This duality confuses people. They often erroneously identify rights with their attendant duties or obligations, with the morally decent, or even with the morally permissible. One's rights inform other people how they MUST behave towards one - not how they SHOULD or OUGHT to act morally. Moral behavior is not dependent on the existence of a right. Obligations are.

To complicate matters further, many apparently simple and straightforward rights are amalgams of more basic moral or legal principles. To treat such rights as unities is to mistreat them.

Take the right to life. It is a compendium of no less than eight distinct rights: the right to be brought to life, the right to be born, the right to have one's life maintained, the right not to be killed, the right to have one's life saved, the right to save one's life (wrongly reduced to the right to self-defense), the right to terminate one's life, and the right to have one's life terminated.

None of these rights is self-evident, or unambiguous, or universal, or immutable, or automatically applicable. It is safe to say, therefore, that these rights are not primary as hitherto believed - but derivative.

## The Right to be Brought to Life

In most moral systems - including all major religions and Western legal methodologies - it is life that gives rise to rights. The dead have rights only because of the existence of the living. Where there is no life - there are no rights. Stones have no rights (though many animists would find this statement abhorrent).

Hence the vitriolic debate about cloning which involves denuding an unfertilized egg of its nucleus. Is there life in an egg or a sperm cell?

That something exists, does not necessarily imply that it harbors life. Sand exists and it is inanimate. But what about things that exist and have the potential to develop life? No one disputes the existence of eggs and sperms - or their capacity to grow alive.

Is the potential to be alive a legitimate source of rights? Does the egg have any rights, or, at the very least, the right to be brought to life (the right to become or to be) and thus to acquire rights? The much trumpeted right to acquire life pertains to an entity which exists but is not alive - an egg. It is, therefore, an unprecedented kind of right. Had such a right existed, it would have implied an obligation or duty to give life to the unborn and the not yet conceived.

Clearly, life manifests, at the earliest, when an egg and a sperm unite at the moment of fertilization. Life is not a potential - it is a process triggered by an event. An unfertilized egg is neither a process - nor an event. It does not even possess the potential to become alive unless and until it is fertilized.

The potential to become alive is not the ontological equivalent of actually being alive. A potential life cannot give rise to rights and obligations. The

transition from potential to being is not trivial, nor is it automatic, or inevitable, or independent of context. Atoms of various elements have the potential to become an egg (or, for that matter, a human being) - yet no one would claim that they ARE an egg (or a human being), or that they should be treated as such (i.e., with the same rights and obligations).

### The Right to be Born

While the right to be brought to life deals with potentials - the right to be born deals with actualities. When one or two adults voluntarily cause an egg to be fertilized by a sperm cell with the explicit intent and purpose of creating another life - the right to be born crystallizes. The voluntary and premeditated action of said adults amounts to a contract with the embryo - or rather, with society which stands in for the embryo.

Henceforth, the embryo acquires the entire panoply of human rights: the right to be born, to be fed, sheltered, to be emotionally nurtured, to get an education, and so on.

But what if the fertilization was either involuntary (rape) or unintentional ("accidental" pregnancy)?

Is the embryo's successful acquisition of rights dependent upon the nature of the conception? We deny criminals their loot as "fruits of the poisoned tree". Why not deny an embryo his life if it is the outcome of a crime?

The conventional response - that the embryo did not commit the crime or conspire in it - is inadequate. We would deny the poisoned fruits of crime to innocent bystanders as well. Would we allow a passerby to freely spend cash thrown out of an escape vehicle following a robbery?

Even if we agree that the embryo has a right to be kept alive - this right cannot be held against his violated mother. It cannot oblige her to harbor this patently unwanted embryo. If it could survive outside the womb, this would have solved the moral dilemma. But it is dubious - to say the least - that it has a right to go on using the mother's body, or resources, or to burden her in any way in order to sustain its own life.

### The Right to Have One's Life Maintained

This leads to a more general quandary. To what extent can one use other people's bodies, their property, their time, their resources and to deprive them of pleasure, comfort, material possessions, income, or any other thing - in order to maintain one's life?

Even if it were possible in reality, it is indefensible to maintain that I have a right to sustain, improve, or prolong my life at another's expense. I cannot demand - though I can morally expect - even a trivial and minimal sacrifice from another in order to prolong my life. I have no right to do so.

Of course, the existence of an implicit, let alone explicit, contract between myself and another party would change the picture. The right to demand sacrifices commensurate with the provisions of the contract would then crystallize and create corresponding duties and obligations.

No embryo has a right to sustain its life, maintain, or prolong it at its mother's expense. This is true regardless of how insignificant the sacrifice required of her is.

Yet, by knowingly and intentionally conceiving the embryo, the mother can be said to have signed a contract with it. The contract causes the right of the embryo to demand such sacrifices from his mother to crystallize. It also

creates corresponding duties and obligations of the mother towards her embryo.

We often find ourselves in a situation where we do not have a given right against other individuals - but we do possess this very same right against society. Society owes us what no constituent-individual does.

Thus, we all have a right to sustain our lives, maintain, prolong, or even improve them at society's expense - no matter how major and significant the resources required. Public hospitals, state pension schemes, and police forces may be needed in order to fulfill society's obligations to prolong, maintain, and improve our lives - but fulfill them it must.

Still, each one of us can sign a contract with society - implicitly or explicitly - and abrogate this right. One can volunteer to join the army. Such an act constitutes a contract in which the individual assumes the duty or obligation to give up his or her life.

### The Right not to be Killed

It is commonly agreed that every person has the right not to be killed unjustly. Admittedly, what is just and what is unjust is determined by an ethical calculus or a social contract - both constantly in flux.

Still, even if we assume an Archimedean immutable point of moral reference - does A's right not to be killed mean that third parties are to refrain from enforcing the rights of other people against A? What if the only way to right wrongs committed by A against others - was to kill A? The moral obligation to right wrongs is about restoring the rights of the wronged.

If the continued existence of A is predicated on the repeated and continuous violation of the rights of others - and these other people object to it - then A must be killed if that is the only way to right the wrong and re-assert the rights of A's victims.

### The Right to have One's Life Saved

There is no such right because there is no moral obligation or duty to save a life. That people believe otherwise demonstrates the muddle between the morally commendable, desirable, and decent ("ought", "should") and the morally obligatory, the result of other people's rights ("must"). In some countries, the obligation to save a life is codified in the law of the land. But legal rights and obligations do not always correspond to moral rights and obligations, or give rise to them.

### The Right to Save One's Own Life

One has a right to save one's life by exercising self-defense or otherwise, by taking certain actions or by avoiding them. Judaism - as well as other religious, moral, and legal systems - accept that one has the right to kill a pursuer who knowingly and intentionally is bent on taking one's life. Hunting down Osama bin-Laden in the wilds of Afghanistan is, therefore, morally acceptable (though not morally mandatory).

But does one have the right to kill an innocent person who unknowingly and unintentionally threatens to take one's life? An embryo sometimes threatens the life of the mother. Does she have a right to take its life? What about an unwitting carrier of the Ebola virus - do we have a right to terminate her life? For that matter, do we have a right to terminate her life even if there is nothing she could have done about it had she known about her condition?



## The Right to Terminate One's Life

There are many ways to terminate one's life: self sacrifice, avoidable martyrdom, engaging in life risking activities, refusal to prolong one's life through medical treatment, euthanasia, overdosing and self inflicted death that is the result of coercion. Like suicide, in all these - bar the last - a foreknowledge of the risk of death is present coupled with its acceptance. Does one have a right to take one's life?

The answer is: it depends. Certain cultures and societies encourage suicide. Both Japanese kamikaze and Jewish martyrs were extolled for their suicidal actions. Certain professions are knowingly life-threatening - soldiers, firemen, policemen. Certain industries - like the manufacture of armaments, cigarettes, and alcohol - boost overall mortality rates.

In general, suicide is commended when it serves social ends, enhances the cohesion of the group, upholds its values, multiplies its wealth, or defends it from external and internal threats. Social structures and human collectives - empires, countries, firms, bands, institutions - often commit suicide. This is considered to be a healthy process.

Thus, suicide came to be perceived as a social act. The flip-side of this perception is that life is communal property. Society has appropriated the right to foster suicide or to prevent it. It condemns individual suicidal entrepreneurship. Suicide, according to Thomas Aquinas, is unnatural. It harms the community and violates God's property rights.

In Judeo-Christian tradition, God is the owner of all souls. The soul is on deposit with us. The very right to use it, for however short a period, is a divine gift. Suicide, therefore, amounts to an abuse of God's possession. Blackstone, the venerable codifier of British Law, concurred. The state, according to him, has a right to prevent and to punish suicide and attempted

suicide. Suicide is self-murder, he wrote, and, therefore, a grave felony. In certain paternalistic countries, this still is the case.

### The Right to Have One's Life Terminated

The right to have one's life terminated at will (euthanasia), is subject to social, ethical, and legal strictures. In some countries - such as the Netherlands - it is legal (and socially acceptable) to have one's life terminated with the help of third parties given a sufficient deterioration in the quality of life and given the imminence of death. One has to be of sound mind and will one's death knowingly, intentionally, repeatedly, and forcefully.

## II. Issues in the Calculus of Rights

### The Hierarchy of Rights

The right to life supersedes - in Western moral and legal systems - all other rights. It overrules the right to one's body, to comfort, to the avoidance of pain, or to ownership of property. Given such lack of equivocation, the amount of dilemmas and controversies surrounding the right to life is, therefore, surprising.

When there is a clash between equally potent rights - for instance, the conflicting rights to life of two people - we can decide among them randomly (by flipping a coin, or casting dice). Alternatively, we can add and subtract rights in a somewhat macabre arithmetic.

Thus, if the continued life of an embryo or a fetus threatens the mother's life - that is, assuming, controversially, that both of them have an equal right to life - we can decide to kill the fetus. By adding to the mother's right to life her right to her own body we outweigh the fetus' right to life.

## The Difference between Killing and Letting Die

Counterintuitively, there is a moral gulf between killing (taking a life) and letting die (not saving a life). The right not to be killed is undisputed. There is no right to have one's own life saved. Where there is a right - and only where there is one - there is an obligation. Thus, while there is an obligation not to kill - there is no obligation to save a life.

### Killing the Innocent

The life of a Victim (V) is sometimes threatened by the continued existence of an innocent person (IP), a person who cannot be held guilty of V's ultimate death even though he caused it. IP is not guilty of dispatching V because he hasn't intended to kill V, nor was he aware that V will die due to his actions or continued existence.

Again, it boils down to ghastly arithmetic. We definitely should kill IP to prevent V's death if IP is going to die anyway - and shortly. The remaining life of V, if saved, should exceed the remaining life of IP, if not killed. If these conditions are not met, the rights of IP and V should be weighted and calculated to yield a decision (See "Abortion and the Sanctity of Human Life" by Baruch A. Brody).

Utilitarianism - a form of crass moral calculus - calls for the maximization of utility (life, happiness, pleasure). The lives, happiness, or pleasure of the many outweigh the life, happiness, or pleasure of the few. If by killing IP we save the lives of two or more people and there is no other way to save their lives - it is morally permissible.

But surely V has right to self defense, regardless of any moral calculus of rights? Not so. Taking another's life to save one's own is rarely justified, though such behavior cannot be condemned. Here we have the flip side of

the confusion we opened with: understandable and perhaps inevitable behavior (self defense) is mistaken for a moral right.

If I were V, I would kill IP unhesitatingly. Moreover, I would have the understanding and sympathy of everyone. But this does not mean that I had a right to kill IP.

Which brings us to September 11.

### Collateral Damage

What should prevail: the imperative to spare the lives of innocent civilians - or the need to safeguard the lives of fighter pilots? Precision bombing puts such pilots at great risk. Avoiding this risk usually results in civilian casualties ("collateral damage").

This moral dilemma is often "solved" by applying - explicitly or implicitly - the principle of "over-riding affiliation". We find the two facets of this principle in Jewish sacred texts: "One is close to oneself" and "Your city's poor denizens come first (with regards to charity)".

Some moral obligations are universal - thou shalt not kill. They are related to one's position as a human being. Other moral values and obligations arise from one's affiliations. Yet, there is a hierarchy of moral values and obligations. The ones related to one's position as a human being are, actually, the weakest.

They are overruled by moral values and obligations related to one's affiliations. The imperative "thou shalt not kill (another human being)" is easily over-ruled by the moral obligation to kill for one's country. The imperative "thou shalt not steal" is superseded by one's moral obligation to spy for one's nation.

This leads to another startling conclusion:

There is no such thing as a self-consistent moral system. Moral values and obligations often contradict each other and almost always conflict with universal moral values and obligations.

In the examples above, killing (for one's country) and stealing (for one's nation) are moral obligations. Yet, they contradict the universal moral value of the sanctity of life and the universal moral obligation not to kill. Far from being a fundamental and immutable principle - the right to life, it would seem, is merely a convenient implement in the hands of society.

### The Aborted Contract And the Right to Life

By: Dr. Sam Vaknin

The issue of abortion is emotionally loaded and this often makes for poor, not thoroughly thought out arguments. The questions: "Is abortion immoral" and "Is abortion a murder" are often confused. The pregnancy (and the resulting fetus) are discussed in terms normally reserved to natural catastrophes (force majeure). At times, the embryo is compared to cancer, a thief, or an invader: after all, they are both growths, clusters of cells. The difference, of course, is that no one contracts cancer willingly (except, to some extent, smokers —but, then they gamble, not contract).

When a woman engages in voluntary sex, does not use contraceptives and gets pregnant - one can say that she signed a contract with her fetus. A contract entails the demonstrated existence of a reasonably (and reasonable) free will. If the fulfillment of the obligations in a contract between individuals could be life-threatening - it is fair and safe to assume that no rational free will was involved. No reasonable person would sign or enter

such a contract with another person (though most people would sign such contracts with society).

Judith Jarvis Thomson argued convincingly ("A Defence of Abortion") that pregnancies that are the result of forced sex (rape being a special case) or which are life threatening should or could, morally, be terminated. Using the transactional language: the contract was not entered to willingly or reasonably and, therefore, is null and void. Any actions which are intended to terminate it and to annul its consequences should be legally and morally permissible.

The same goes for a contract which was entered into against the express will of one of the parties and despite all the reasonable measures that the unwilling party adopted to prevent it. If a mother uses contraceptives in a manner intended to prevent pregnancy, it is as good as saying: " I do not want to sign this contract, I am doing my reasonable best not to sign it, if it is signed - it is contrary to my express will". There is little legal (or moral) doubt that such a contract should be voided.

Much more serious problems arise when we study the other party to these implicit agreements: the embryo. To start with, it lacks consciousness (in the sense that is needed for signing an enforceable and valid contract). Can a contract be valid even if one of the "signatories" lacks this sine qua non trait? In the absence of consciousness, there is little point in talking about free will (or rights which depend on sentience). So, is the contract not a contract at all? Does it not reflect the intentions of the parties?

The answer is in the negative. The contract between a mother and her fetus is derived from the larger Social Contract. Society - through its apparatuses - stands for the embryo the same way that it represents minors, the mentally retarded, and the insane. Society steps in - and has the recognized right and moral obligation to do so - whenever the powers of the

parties to a contract (implicit or explicit) are not balanced. It protects small citizens from big monopolies, the physically weak from the thug, the tiny opposition from the mighty administration, the barely surviving radio station from the claws of the devouring state mechanism. It also has the right and obligation to intervene, intercede and represent the unconscious: this is why euthanasia is absolutely forbidden without the consent of the dying person. There is not much difference between the embryo and the comatose.

A typical contract states the rights of the parties. It assumes the existence of parties which are "moral personhoods" or "morally significant persons" - in other words, persons who are holders of rights and can demand from us to respect these rights. Contracts explicitly elaborate some of these rights and leaves others unmentioned because of the presumed existence of the Social Contract. The typical contract assumes that there is a social contract which applies to the parties to the contract and which is universally known and, therefore, implicitly incorporated in every contract. Thus, an explicit contract can deal with the property rights of a certain person, while neglecting to mention that person's rights to life, to free speech, to the enjoyment the fruits of his lawful property and, in general to a happy life.

There is little debate that the Mother is a morally significant person and that she is a rights-holder. All born humans are and, more so, all adults above a certain age. But what about the unborn fetus?

One approach is that the embryo has no rights until certain conditions are met and only upon their fulfillment is he transformed into a morally significant person ("moral agent"). Opinions differ as to what are the conditions. Rationality, or a morally meaningful and valued life are some of the oft cited criteria. The fallaciousness of this argument is easy to demonstrate: children are irrational - is this a licence to commit infanticide?

A second approach says that a person has the right to life because it desires it.

But then what about chronic depressives who wish to die - do we have the right to terminate their miserable lives? The good part of life (and, therefore, the differential and meaningful test) is in the experience itself - not in the desire to experience.

Another variant says that a person has the right to life because once his life is terminated - his experiences cease. So, how should we judge the right to life of someone who constantly endures bad experiences (and, as a result, harbors a death wish)? Should he better be "terminated"?

Having reviewed the above arguments and counter-arguments, Don Marquis goes on (in "Why Abortion is Immoral", 1989) to offer a sharper and more comprehensive criterion: terminating a life is morally wrong because a person has a future filled with value and meaning, similar to ours.

But the whole debate is unnecessary. There is no conflict between the rights of the mother and those of her fetus because there is never a conflict between parties to an agreement. By signing an agreement, the mother gave up some of her rights and limited the others. This is normal practice in contracts: they represent compromises, the optimization (and not the maximization) of the parties' rights and wishes. The rights of the fetus are an inseparable part of the contract which the mother signed voluntarily and reasonably. They are derived from the mother's behaviour. Getting willingly pregnant (or assuming the risk of getting pregnant by not using contraceptives reasonably) - is the behaviour which validates and ratifies a contract between her and the fetus. Many contracts are by behaviour, rather than by a signed piece of paper. Numerous contracts are verbal or behavioural. These contracts, though implicit, are as binding as any of their written, more explicit, brethren. Legally (and morally) the situation is



crystal clear: the mother signed some of her rights away in this contract. Even if she regrets it - she cannot claim her rights back by annulling the contract unilaterally. No contract can be annulled this way - the consent of both parties is required. Many times we realize that we have entered a bad contract, but there is nothing much that we can do about it. These are the rules of the game.

Thus the two remaining questions: (a) can this specific contract (pregnancy) be annulled and, if so (b) in which circumstances - can be easily settled using modern contract law. Yes, a contract can be annulled and voided if signed under duress, involuntarily, by incompetent persons (e.g., the insane), or if one of the parties made a reasonable and full scale attempt to prevent its signature, thus expressing its clear will not to sign the contract. It is also terminated or voided if it would be unreasonable to expect one of the parties to see it through. Rape, contraception failure, life threatening situations are all such cases.

This could be argued against by saying that, in the case of economic hardship, for instance, the damage to the mother's future is certain. True, her value-filled, meaningful future is granted - but so is the detrimental effect that the fetus will have on it, once born. This certainty cannot be balanced by the UNCERTAIN value-filled future life of the embryo. Always, preferring an uncertain good to a certain evil is morally wrong. But surely this is a quantitative matter - not a qualitative one. Certain, limited aspects of the rest of the mother's life will be adversely effected (and can be ameliorated by society's helping hand and intervention) if she does have the baby. The decision not to have it is both qualitatively and quantitatively different. It is to deprive the unborn of all the aspects of all his future life - in which he might well have experienced happiness, values, and meaning.

The questions whether the fetus is a Being or a growth of cells, conscious in any manner, or utterly unconscious, able to value his life and to want them - are all but irrelevant. He has the potential to lead a happy, meaningful, value-filled life, similar to ours, very much as a one minute old baby does. The contract between him and his mother is a service provision contract. She provides him with goods and services that he requires in order to materialize his potential. It sounds very much like many other human contracts. And this contract continues well after pregnancy has ended and birth given.

Consider education: children do not appreciate its importance or value its potential - still, it is enforced upon them because we, who are capable of those feats, want them to have the tools that they will need in order to develop their potential. In this and many other respects, the human pregnancy continues well into the fourth year of life (physiologically it continues in to the second year of life - see "Born Alien"). Should the location of the pregnancy (in uterus, in vivo) determine its future? If a mother has the right to abort at will, why should the mother be denied her right to terminate the " pregnancy" AFTER the fetus emerges and the pregnancy continues OUTSIDE her womb? Even after birth, the woman's body is the main source of food to the baby and, in any case, she has to endure physical hardship to raise the child. Why not extend the woman's ownership of her body and right to it further in time and space to the post-natal period?

Contracts to provide goods and services (always at a personal cost to the provider) are the commonest of contracts. We open a business. We sell a software application, we publish a book - we engage in helping others to materialize their potential. We should always do so willingly and reasonably - otherwise the contracts that we sign will be null and void. But to deny anyone his capacity to materialize his potential and the goods and services

that he needs to do so - after a valid contract was entered into - is immoral. To refuse to provide a service or to condition its provision (Mother: "I will provide the goods and services that I agreed to provide to this fetus under this contract only if and when I benefit from such provision") is a violation of the contract and should be penalized. Admittedly, at times we have a right to choose to do the immoral (because it has not been codified as illegal) - but that does not turn it into moral.

Still, not every immoral act involving the termination of life can be classified as murder. Phenomenology is deceiving: the acts look the same (cessation of life functions, the prevention of a future). But murder is the intentional termination of the life of a human who possesses, at the moment of death, a consciousness (and, in most cases, a free will, especially the will not to die). Abortion is the intentional termination of a life which has the potential to develop into a person with consciousness and free will. Philosophically, no identity can be established between potential and actuality. The destruction of paints and cloth is not tantamount (not to say identical) to the destruction of a painting by Van Gogh, made up of these very elements. Paints and cloth are converted to a painting through the intermediacy and agency of the Painter. A cluster of cells a human makes only through the agency of Nature.

Surely, the destruction of the painting materials constitutes an offence against the Painter. In the same way, the destruction of the fetus constitutes an offence against Nature. But there is no denying that in both cases, no finished product was eliminated. Naturally, this becomes less and less so (the severity of the terminating act increases) as the process of creation advances.

Classifying an abortion as murder poses numerous and insurmountable philosophical problems.

No one disputes the now common view that the main crime committed in aborting a pregnancy - is a crime against potentialities. If so, what is the philosophical difference between aborting a fetus and destroying a sperm and an egg? These two contain all the information (=all the potential) and their destruction is philosophically no less grave than the destruction of a fetus. The destruction of an egg and a sperm is even more serious philosophically: the creation of a fetus limits the set of all potentials embedded in the genetic material to the one fetus created. The egg and sperm can be compared to the famous wave function (state vector) in quantum mechanics - they represent millions of potential final states (=millions of potential embryos and lives). The fetus is the collapse of the wave function: it represents a much more limited set of potentials. If killing an embryo is murder because of the elimination of potentials - how should we consider the intentional elimination of many more potentials through masturbation and contraception?

The argument that it is difficult to say which sperm cell will impregnate the egg is not serious. Biologically, it does not matter - they all carry the same genetic content. Moreover, would this counter-argument still hold if, in future, we were able to identify the chosen one and eliminate only it? In many religions (Catholicism) contraception is murder. In Judaism, masturbation is "the corruption of the seed" and such a serious offence that it is punishable by the strongest religious penalty: eternal excommunication ("Karet").

If abortion is indeed murder how should we resolve the following moral dilemmas and questions (some of them patently absurd):

Is a natural abortion the equivalent of manslaughter (through negligence)?

Do habits like smoking, drug addiction, vegetarianism - infringe upon the right to life of the embryo? Do they constitute a violation of the contract?

Reductio ad absurdum: if, in the far future, research will unequivocally prove that listening to a certain kind of music or entertaining certain thoughts seriously hampers the embryonic development - should we apply censorship to the Mother?

Should force majeure clauses be introduced to the Mother-Embryo pregnancy contract? Will they give the mother the right to cancel the contract? Will the embryo have a right to terminate the contract? Should the asymmetry persist: the Mother will have no right to terminate - but the embryo will, or vice versa?

Being a rights holder, can the embryo (=the State) litigate against his Mother or Third Parties (the doctor that aborted him, someone who hit his mother and brought about a natural abortion) even after he died?

Should anyone who knows about an abortion be considered an accomplice to murder?

If abortion is murder - why punish it so mildly? Why is there a debate regarding this question? "Thou shalt not kill" is a natural law, it appears in virtually every legal system. It is easily and immediately identifiable. The fact that abortion does not "enjoy" the same legal and moral treatment says a lot.

In Our Own Image

The Debate about Cloning

By: Dr. Sam Vaknin

There are two types of cloning. One involves harvesting stem cells from embryos ("therapeutic cloning"). These are the biological equivalent of a template. They can develop into any kind of mature functional cell and thus help cure many degenerative and auto-immune diseases.

The other kind of cloning is much derided in popular culture - and elsewhere - as the harbinger of a Brave, New World. A nucleus from any cell of a donor is embedded in an egg whose own nucleus has been removed. The egg is then implanted in a woman's womb and a cloned baby is born nine months later. Biologically, the cloned infant is a replica of the donor.

Cloning is often confused with other advances in bio-medicine and bio-engineering - such as genetic selection. It cannot - in itself - be used to produce "perfect humans" or select sex or other traits. Hence, some of the arguments against cloning are either specious or fuelled by ignorance.

It is true, though, that cloning, used in conjunction with other biotechnologies, raises serious bio-ethical questions.

Scare scenarios of humans cultivated in sinister labs as sources of spare body parts, "designer babies", "master races", or "genetic sex slaves" - formerly the preserve of B sci-fi movies - have invaded mainstream discourse.

Still, cloning touches upon Mankind's most basic fears and hopes. It invokes the most intractable ethical and moral dilemmas. As an inevitable result, the debate is often more passionate than informed.

Right to Life Arguments

According to cloning's detractors, the nucleus removed from the egg could otherwise have developed into a human being. Thus, removing the nucleus amounts to murder.

It is a fundamental principle of most moral theories that all human beings have a right to life. The existence of a right implies obligations or duties of third parties towards the right-holder. One has a right AGAINST other people. The fact that one possesses a certain right - prescribes to others certain obligatory behaviours and proscribes certain acts or omissions. This Janus-like nature of rights and duties as two sides of the same ethical coin - creates great confusion. People often and easily confuse rights and their attendant duties or obligations with the morally decent, or even with the morally permissible. What one MUST do as a result of another's right - should never be confused with one SHOULD or OUGHT to do morally (in the absence of a right).

But is the egg - alive?

This question is NOT equivalent to the ancient quandary of "when does life begin". Life crystallizes, at the earliest, when an egg and a sperm unite (i.e., at the moment of fertilization). Life is not a potential - it is a process triggered by an event. An unfertilized egg is neither a process - nor an event. It does not even possess the potential to become alive unless and until it merges with a sperm. Should such merger not occur - it will never develop life.

The potential to become X is not the ontological equivalent of actually being X, nor does it spawn moral and ethical rights and obligations pertaining to X. The transition from potential to being is not trivial, nor is it automatic, or inevitable, or independent of context. Atoms of various elements have the potential to become an egg (or, for that matter, a human being) - yet no one would claim that they ARE an egg (or a human being),

or that they should be treated as one (i.e., with the same rights and obligations).

Moreover, it is the donor nucleus embedded in the egg that endows it with life - the life of the cloned baby. Yet, the nucleus is usually extracted from a muscle or the skin. Should we treat a muscle or a skin cell with the same reverence the critics of cloning wish to accord an unfertilized egg?

Is this the main concern?

The main concern is that cloning - even the therapeutic kind - will produce piles of embryos. Many of them - close to 95% with current biotechnology - will die. Others can be surreptitiously and illegally implanted in the wombs of "surrogate mothers".

It is patently immoral, goes the precautionary argument, to kill so many embryos. Cloning is such a novel technique that its success rate is still unacceptably low. There are alternative ways to harvest stem cells - less costly in terms of human life. If we accept that life begins at the moment of fertilization, this argument is valid. But it also implies that - once cloning becomes safer and scientists more adept - cloning itself should be permitted.

This is anathema to those who fear a slippery slope. They abhor the very notion of "unnatural" conception. To them, cloning is a narcissistic act and an ignorant and dangerous interference in nature's sagacious ways. They would ban procreative cloning, regardless of how safe it is. Therapeutic cloning - with its mounds of discarded fetuses - will allow rogue scientists to cross the boundary between permissible (curative cloning) and illegal (baby cloning).

Why should Baby Cloning be Illegal?



Cloning's opponents object to procreative cloning because it can be abused to design babies, skew natural selection, unbalance nature, produce masters and slaves and so on. The "argument from abuse" has been raised with every scientific advance - from in vitro fertilization to space travel.

Every technology can be potentially abused. Television can be either a wonderful educational tool - or an addictive and mind numbing pastime. Nuclear fission is a process that yields both nuclear weapons and atomic energy. To claim, as many do, that cloning touches upon the "heart" of our existence, the "kernel" of our being, the very "essence" of our nature - and thus threatens life itself - would be incorrect.

There is no "privileged" form of technological abuse and no hierarchy of potentially abusive technologies. Nuclear fission tackles natural processes as fundamental as life. Nuclear weapons threaten life no less than cloning. The potential for abuse is not a sufficient reason to arrest scientific research and progress - though it is a necessary condition.

Some fear that cloning will further the government's enmeshment in the healthcare system and in scientific research. Power corrupts and it is not inconceivable that governments will ultimately abuse and misuse cloning and other biotechnologies. Nazi Germany had a state-sponsored and state-mandated eugenics program in the 1930's.

Yet, this is another variant of the argument from abuse. That a technology can be abused by governments does not imply that it should be avoided or remain undeveloped. This is because all technologies - without a single exception - can and are abused routinely - by governments and others. This is human nature.

Fukuyama raised the possibility of a multi-tiered humanity in which "natural" and "genetically modified" people enjoy different rights and

privileges. But why is this inevitable? Surely this can easily be tackled by proper, prophylactic, legislation?

All humans, regardless of their pre-natal history, should be treated equally. Are children currently conceived in vitro treated any differently to children conceived in utero? They are not. There is no reason that cloned or genetically-modified children should belong to distinct legal classes.

### Unbalancing Nature

It is very anthropocentric to argue that the proliferation of genetically enhanced or genetically selected children will somehow unbalance nature and destabilize the precarious equilibrium it maintains. After all, humans have been modifying, enhancing, and eliminating hundreds of thousands of species for well over 10,000 years now. Genetic modification and bio-engineering are as natural as agriculture. Human beings are a part of nature and its manifestation. By definition, everything they do is natural.

Why would the genetic alteration or enhancement of one more species - homo sapiens - be of any consequence? In what way are humans "more important" to nature, or "more crucial" to its proper functioning? In our short history on this planet, we have genetically modified and enhanced wheat and rice, dogs and cows, tulips and orchids, oranges and potatoes. Why would interfering with the genetic legacy of the human species be any different?

### Effects on Society

Cloning - like the Internet, the television, the car, electricity, the telegraph, and the wheel before it - is bound to have great social consequences. It may foster "embryo industries". It may lead to the exploitation of women - either willingly ("egg prostitution") or unwillingly

("womb slavery"). Charles Krauthammer, a columnist and psychiatrist, quoted in "The Economist", says:

"(Cloning) means the routinisation, the commercialisation, the commodification of the human embryo".

Exploiting anyone unwillingly is a crime, whether it involves cloning or white slavery. But why would egg donations and surrogate motherhood be considered problems? If we accept that life begins at the moment of fertilization and that a woman owns her body and everything within it - why should she not be allowed to sell her eggs or to host another's baby and how would these voluntary acts be morally repugnant? In any case, human eggs are already being bought and sold and the supply far exceeds the demand.

Moreover, full-fledged humans are routinely "routinised, commercialized, and commodified" by governments, corporations, religions, and other social institutions. Consider war, for instance - or commercial advertising. How is the "routinisation, commercialization, and commodification" of embryos more reprehensible than the "routinisation, commercialization, and commodification" of fully formed human beings?

### Curing and Saving Life

Cell therapy based on stem cells often leads to tissue rejection and necessitates costly and potentially dangerous immunosuppressive therapy. But when the stem cells are harvested from the patient himself and cloned, these problems are averted. Therapeutic cloning has vast untapped - though at this stage still remote - potential to improve the lives of hundreds of millions.

As far as "designer babies" go, pre-natal cloning and genetic engineering can be used to prevent disease or cure it, to suppress unwanted traits, and to

enhance desired ones. It is the moral right of a parent to make sure that his progeny suffers less, enjoys life more, and attains the maximal level of welfare throughout his or her life.

That such technologies can be abused by over-zealous, or mentally unhealthy parents in collaboration with avaricious or unscrupulous doctors - should not prevent the vast majority of stable, caring, and sane parents from gaining access to them.

## Ethical Relativism and Absolute Taboos

By: Dr. Sam Vaknin

### I. Taboos

### II. Incest

### III. Suicide

### IV. Race

### V. Moral Relativism

### I. Taboos

Taboos regulate our sexual conduct, race relations, political institutions, and economic mechanisms - virtually every realm of our life. According to the 2002 edition of the "Encyclopedia Britannica", they are "the prohibition of an action or the use of an object based on ritualistic distinctions of them either as being sacred and consecrated or as being dangerous, unclean, and accursed."

Jews are instructed to ritually cleanse themselves after having been in contact with a Torah scroll - or a corpse. This association of the sacred with the accursed and the holy with the depraved is the key to the guilt and sense of danger which accompany the violation of a taboo.

In Polynesia, where the term originated, "taboos could include prohibitions on fishing or picking fruit at certain seasons; food taboos that restrict the diet of pregnant women; prohibitions on talking to or touching chiefs or members of other high social classes; taboos on walking or traveling in certain areas, such as forests; and various taboos that function during important life events such as birth, marriage, and death."

Political correctness is a particularly pernicious kind of taboo enforcement. It entails an all-pervasive self-censorship coupled with social sanctions. Consider the treatment of the right to life, incest, suicide, and race.

## II. Incest

In contemporary thought, incest is invariably associated with child abuse and its horrific, long-lasting, and often irreversible consequences. But incest is far from being the clear-cut or monolithic issue that millennia of taboo imply. Incest with minors is a private - and particularly egregious - case of pedophilia or statutory rape. It should be dealt with forcefully. But incest covers much more besides these criminal acts.

Incest is the ethical and legal prohibition to have sex with a related person or to marry him or her - even if the people involved are consenting and fully informed adults. Contrary to popular mythology, banning incest has little to do with the fear of genetic diseases. Even genetically unrelated parties (a stepfather and a stepdaughter) can commit incest.

Incest is also forbidden between fictive kin or classificatory kin (that belong to the same matriline or patriline). In certain societies (certain Native American tribes, or the Chinese) it is sufficient to carry the same family name (i.e., to belong to the same clan) to render a relationship incestuous. Clearly, eugenic considerations have little to do with incest.

Moreover, the use of contraceptives means that incest does not need to result in pregnancy and the transmission of genetic material. Inbreeding (endogamous) or straightforward incest is the norm in many life forms, even among primates (e.g., chimpanzees). It was also quite common until recently in certain human societies - the Hindus, for instance, or many Native American tribes, and royal families everywhere.

Nor is the taboo universal. In some societies, incest is mandatory or prohibited, according to one's social class (Bali). In others, the Royal House started a tradition of incestuous marriages, later emulated by the lower classes (Ancient Egypt). The list is long and it serves to demonstrate the diversity of attitudes towards this most universal practice.

The more primitive and aggressive the society, the more strict and elaborate the set of incest prohibitions and the fiercer the penalties for their violation. The reason may be economic. Incest interferes with rigid algorithms of inheritance in conditions of extreme scarcity (for instance, of land and water) and consequently leads to survival-threatening internecine disputes.

Freud said that incest provokes horror because it touches upon our forbidden, ambivalent sexual cravings and aggression towards members of our close family. Westermarck held that "familiarity breeds repulsion" and that the incest taboo - rather than counter inbred instincts - simply reflects emotional reality. Both ignored the fact that the incest taboo is learned - not inherent.

We can easily imagine a society where incest is extolled, taught, and practiced - and out-breeding is regarded with horror and revulsion. The incestuous marriages among members of the royal households of Europe were intended to preserve the familial property and expand the clan's territory. They were normative, not aberrant. Marrying an outsider was considered abhorrent.

### III. Suicide

Self-sacrifice, avoidable martyrdom, engaging in life risking activities, refusal to prolong one's life through medical treatment, euthanasia, overdosing, and self-destruction that is the result of coercion - are all closely related to suicide. They all involve a deliberately self-inflicted death.

But while suicide is chiefly intended to terminate a life - the other acts are aimed at perpetuating, strengthening, and defending values or other people. Many are appalled by the choice implied in suicide - of death over life. They feel that it demeans life - i.e., abnegates its meaning.

Life's meaning - the outcome of active selection by the individual - is either external (i.e., God's plan) or internal (i.e., the outcome of an arbitrary frame of reference).

Our life is rendered meaningful only by integrating into an eternal thing, process, design, or being. Suicide makes life trivial because the act is not natural - not part of the eternal framework, the undying process, the timeless cycle of birth and death. Suicide is a break with eternity.

Sidgwick said that only conscious (i.e., intelligent) beings can appreciate values and meanings. So, life is significant to conscious, intelligent, though finite, beings - because it is a part of some eternal goal, plan, process, thing,

design, or being. Suicide flies in the face of Sidgwick's dictum. It is a statement by an intelligent and conscious being about the meaninglessness of life.

If suicide is a statement, than society, in this case, is against the freedom of expression. In the case of suicide, free speech dissonantly clashes with the sanctity of a meaningful life. To rid itself of the anxiety brought on by this conflict, society cast suicide as a depraved or even criminal act and its perpetrators are much castigated.

The suicide violates not only the social contract - but, many will add, covenants with God or nature. Thomas Aquinas said that - since organisms strive to survive - suicide is an unnatural act. Moreover, it adversely affects the community and violates the property rights of God, the imputed owner of one's spirit. Christianity regards the immortal soul as a gift and, in Jewish writings, it is a deposit. Suicide amounts to the abuse or misuse of God's possessions, temporarily lodged in a corporeal mansion.

This paternalism was propagated, centuries later, by Blackstone, the codifier of British Law. Suicide - being self-murder - is a grave felony, which the state has a right to prevent and to punish for.

In certain countries this still is the case. In Israel, for instance, a soldier is considered to be "military property" and an attempted suicide is severely punished as "a corruption of a army chattel".

Paternalism, a malignant mutation of benevolence, is about objectifying people and treating them as possessions. Even fully-informed and consenting adults are not granted full, unmitigated autonomy, freedom, and privacy. This tends to breed "victimless crimes". The "culprits" - gamblers, homosexuals, communists, suicides, drug addicts, alcoholics, prostitutes - are "protected from themselves" by an intrusive nanny state.



The possession of a right creates a corresponding obligation not to act to frustrate its exercise. Suicide is often the choice of a mentally and legally competent adult. Life is such a basic and deep set phenomenon that even the incompetents - the mentally retarded or mentally insane or minors - can fully gauge its significance and make "informed" decisions, in my view.

The paternalists claim counterfactually that no competent adult "in his right mind" will ever decide to commit suicide. They cite the cases of suicides who survived and felt very happy that they have - as a compelling reason to intervene. But we all make irreversible decisions for which, sometimes, we are sorry. It gives no one the right to interfere.

Paternalism is a slippery slope. Should the state be allowed to prevent the birth of a genetically defective child or forbid his parents to marry in the first place?

Should unhealthy adults be forced to abstain from smoking, or steer clear from alcohol? Should they be coerced to exercise?

Suicide is subject to a double moral standard. People are permitted - nay, encouraged - to sacrifice their life only in certain, socially sanctioned, ways. To die on the battlefield or in defense of one's religion is commendable. This hypocrisy reveals how power structures - the state, institutional religion, political parties, national movements - aim to monopolize the lives of citizens and adherents to do with as they see fit. Suicide threatens this monopoly. Hence the taboo.

#### IV. Race

Social Darwinism, sociobiology, and, nowadays, evolutionary psychology are all derided and disparaged because they try to prove that nature - more specifically, our genes - determine our traits, our

accomplishments, our behavior patterns, our social status, and, in many ways, our destiny. Our upbringing and our environment change little. They simply select from ingrained libraries embedded in our brain.

Moreover, the discussion of race and race relations is tainted by a history of recurrent ethnocide and genocide and thwarted by the dogma of egalitarianism. The (legitimate) question "are all races equal" thus becomes a private case of the (no less legitimate) "are all men equal". To ask "can races co-exist peacefully" is thus to embark on the slippery slope to slavery and Auschwitz. These historical echoes and the overweening imposition of political correctness prevent any meaningful - let alone scientific - discourse.

The irony is that "race" - or at least race as determined by skin color - is a distinctly unscientific concept, concerned more with appearances (i.e., the color of one's skin, the shape of one's head or hair), common history, and social politics - than with heredity. Most human classificatory traits are not concordant. Different taxonomic criteria conjure up different "races". IQ is a similarly contentious construct, although it is stable and does predict academic achievement effectively.

Thus, racist-sounding claims are as unfounded as claims about racial equality. Still, while the former are treated as an abomination - the latter are accorded academic respectability and scientific scrutiny.

Consider these two hypotheses:

I. That the IQ (or any other measurable trait) of a given race or ethnic group is hereditarily determined (i.e., that skin color and IQ - or another measurable trait - are concordant) and is strongly correlated with certain types of behavior, life accomplishments, and social status.

II. That the IQ (or any other quantifiable trait) of a given race or "ethnic group" is the outcome of social and economic circumstances and even if strongly correlated with behavior patterns, academic or other achievements, and social status - which is disputable - is amenable to "social engineering".

Both theories are falsifiable and both deserve serious, unbiased, study. That we choose to ignore the first and substantiate the second demonstrates the pernicious and corrupting effect of political correctness.

Claims of the type "trait A and trait B are concordant" should be investigated by scientists, regardless of how politically incorrect they are. Not so claims of the type "people with trait A are ..." or "people with trait A do ...". These should be decried as racist tripe.

Thus the statement "The traits of being an Ashkenazi Jew (A) and suffering from Tay-Sachs induced idiocy (B) are concordant" is true 1 of every 2500 times.

The statements "people who are Jews (i.e., with trait A) are (narcissists)", or "people who are Jews (i.e., with trait A) do this: they drink the blood of innocent Christian children during the Passover rites" - are vile racist and paranoid statements.

People are not created equal. Human diversity - a taboo topic - is a cause for celebration. It is important to study and ascertain what are the respective contributions of nature and nurture to the way people - individuals and groups - grow, develop, and mature. In the pursuit of this invaluable and essential knowledge, taboos are dangerously counter-productive.

## V. Moral Relativism

Protagoras, the Greek Sophist, was the first to notice that ethical codes are culture-dependent and vary in different societies, economies, and geographies. The pragmatist believe that what is right is merely what society thinks is right at any given moment. Good and evil are not immutable. No moral principle - and taboos are moral principles - is universally and eternally true and valid. Morality applies within cultures but not across them.

But ethical or cultural relativism and the various schools of pragmatism ignore the fact that certain ethical percepts - probably grounded in human nature - do appear to be universal and ancient, if not eternal. Fairness, veracity, keeping promises, moral hierarchy - permeate all the cultures we have come to know. Nor can certain moral tenets be explained away as mere expressions of emotions or behavioral prescriptions - devoid of cognitive content, logic, and a relatedness to certain facts.

Still, it is easy to prove that most taboos are, indeed, relative. Incest, suicide, feticide, infanticide, parricide, ethnocide, genocide, genital mutilation, social castes, and adultery are normative in certain cultures - and strictly proscribed in others. Taboos are pragmatic moral principles. They derive their validity from their efficacy. They are observed because they work, because they yield solutions and provide results. They disappear or are transformed when no longer useful.

Incest is likely to be tolerated in a world with limited possibilities for procreation. Suicide is bound to be encouraged in a society suffering from extreme scarcity of resources and over-population. Ethnocentrism, racism and xenophobia will inevitably rear their ugly heads again in anomic circumstances. None of these taboos is unassailable.

None of them reflects some objective truth, independent of culture and circumstances. They are convenient conventions, workable principles, and

regulatory mechanisms - nothing more. That scholars are frantically trying to convince us otherwise - or to exclude such a discussion altogether - is a sign of the growing disintegration of our weakening society.

## **THE AUTHOR**

SHMUEL (SAM) VAKNIN

### Curriculum Vitae

Click on blue text to access relevant web sites - thank you.

Born in 1961 in Qiryat-Yam, Israel.

Served in the Israeli Defence Force (1979-1982) in training and education units.

### Education

Graduated a few semesters in the Technion - Israel Institute of Technology, Haifa.

Ph.D. in Philosophy (major : Philosophy of Physics) - Pacific Western University, California.

Graduate of numerous courses in Finance Theory and International Trading.

Certified E-Commerce Concepts Analyst.

Certified in Psychological Counselling Techniques.

Full proficiency in Hebrew and in English.

## Business Experience

1980 to 1983

Founder and co-owner of a chain of computerized information kiosks in Tel-Aviv, Israel.

1982 to 1985

Senior positions with the Nessim D. Gaon Group of Companies in Geneva, Paris and New-York (NOGA and APROFIM SA):

- Chief Analyst of Edible Commodities in the Group's Headquarters in Switzerland.
- Manager of the Research and Analysis Division
- Manager of the Data Processing Division
- Project Manager of The Nigerian Computerized Census
- Vice President in charge of RND and Advanced Technologies
- Vice President in charge of Sovereign Debt Financing

1985 to 1986

Represented Canadian Venture Capital Funds in Israel.

1986 to 1987

General Manager of IPE Ltd. in London. The firm financed international multi-lateral countertrade and leasing transactions.

1988 to 1990

Co-founder and Director of "Mikbats - Tesuah", a portfolio management firm based in Tel-Aviv.

Activities included large-scale portfolio management, underwriting, forex trading and general financial advisory services.

1990 to Present

Free-lance consultant to many of Israel's Blue-Chip firms, mainly on issues related to the capital markets in Israel, Canada, the UK and the USA.

Consultant to foreign RND ventures and to Governments on macro-economic matters.

President of the Israel chapter of the Professors World Peace Academy (PWPA) and (briefly) Israel representative of the "Washington Times".

1993 to 1994

Co-owner and Director of many business enterprises:

- The Omega and Energy Air-Conditioning Concern
- AVP Financial Consultants
- Handiman Legal Services

Total annual turnover of the group: 10 million USD.

Co-owner, Director and Finance Manager of COSTI Ltd. - Israel's largest computerized information vendor and developer. Raised funds through a series of private placements locally, in the USA, Canada and London.

1993 to 1996

Publisher and Editor of a Capital Markets Newsletter distributed by subscription only to dozens of subscribers countrywide.

In a legal precedent in 1995 - studied in business schools and law faculties across Israel - was tried for his role in an attempted takeover of Israel's Agriculture Bank.

Was interned in the State School of Prison Wardens.

Managed the Central School Library, wrote, published and lectured on various occasions.

Managed the Internet and International News Department of an Israeli mass media group, "Ha-Tikshoret and Namer".

Assistant in the Law Faculty in Tel-Aviv University (to Prof. S.G. Shoham).

1996 to 1999

Financial consultant to leading businesses in Macedonia, Russia and the Czech Republic.

Collaborated with the Agency of Transformation of Business with Social Capital.

Economic commentator in "Nova Makedonija", "Dnevnik", "Izvestia", "Argumenti i Fakti", "The Middle East Times", "Makedonija Denes", "The New Presence", "Central Europe Review", and other periodicals and in the economic programs on various channels of Macedonian Television.

Chief Lecturer in courses organized by the Agency of Transformation, by the Macedonian Stock Exchange and by the Ministry of Trade.

1999 to 2002



Economic Advisor to the Government of the Republic of Macedonia and to the Ministry of Finance.

2001 to present

Senior Business Correspondent for United Press International (UPI)

Web and Journalistic Activities

Author of extensive Websites in Psychology ("Malignant Self Love") - An Open Directory Cool Site

Philosophy ("Philosophical Musings")

Economics and Geopolitics ("World in Conflict and Transition")

Owner of the Narcissistic Abuse Announcement and Study List and the Narcissism Revisited mailing list (more than 3900 members)

Owner of the Economies in Conflict and Transition Study list.

Editor of mental health disorders and Central and Eastern Europe categories in web directories (Open Directory, Suite 101, Search Europe).

Columnist and commentator in "The New Presence", United Press International (UPI), InternetContent, eBookWeb and "Central Europe Review".

Publications and Awards

"Managing Investment Portfolios in states of Uncertainty", Limon Publishers, Tel-Aviv, 1988

"The Gambling Industry", Limon Publishers., Tel-Aviv, 1990

"Requesting my Loved One - Short Stories", Yedioth Aharonot, Tel-Aviv, 1997

"The Macedonian Economy at a Crossroads - On the way to a Healthier Economy" (with Nikola Gruevski), Skopje, 1998

"Malignant Self Love - Narcissism Revisited", Narcissus Publications, Prague and Skopje, 1999, 2001, 2002

The Narcissism Series - e-books regarding relationships with abusive narcissists (Skopje, 1999-2002)

"The Exporters' Pocketbook", Ministry of Trade, Republic of Macedonia, Skopje, 1999

"The Suffering of Being Kafka" (electronic book of Hebrew Short Fiction, Prague, 1998)

"After the Rain - How the West Lost the East", Narcissus Publications in association with Central Europe Review/CEENMI, Prague and Skopje, 2000

Winner of numerous awards, among them the Israeli Education Ministry Prize (Literature) 1997, The Rotary Club Award for Social Studies (1976) and the Bilateral Relations Studies Award of the American Embassy in Israel (1978).

Hundreds of professional articles in all fields of finances and the economy and numerous articles dealing with geopolitical and political economic issues published in both print and web periodicals in many countries.

Many appearances in the electronic media on subjects in philosophy and the Sciences and concerning economic matters.

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Philosophy:

<http://philosophos.tripod.com/>

Poetry:

<http://samvak.tripod.com/contents.html>

Return

After the Rain

How the West

## Lost the East

### The Book

This is a series of articles written and published in 1996-2000 in Macedonia, in Russia, in Egypt and in the Czech Republic.

How the West lost the East. The economics, the politics, the geopolitics, the conspiracies, the corruption, the old and the new, the plough and the internet - it is all here, in colourful and provocative prose.

From "The Mind of Darkness":

"'The Balkans' - I say - 'is the unconscious of the world'. People stop to digest this metaphor and then they nod enthusiastically. It is here that the repressed memories of history, its traumas and fears and images reside. It is here that the psychodynamics of humanity - the tectonic clash between Rome and Byzantium, West and East, Judeo-Christianity and Islam - is still easily discernible. We are seated at a New Year's dining table, loaded with a roasted pig and exotic salads. I, the Jew, only half foreign to this cradle of Slavonics. Four Serbs, five Macedonians. It is in the Balkans that all ethnic distinctions fail and it is here that they prevail anachronistically and atavistically. Contradiction and change the only two fixtures of this tormented region. The women of the Balkan - buried under provocative mask-like make up, retro hairstyles and too narrow dresses. The men, clad in sepia colours, old fashioned suits and turn of the century moustaches. In the background there is the crying game that is Balkanian music: liturgy and folk and elegy

combined. The smells are heavy with muskular perfumes. It is like time travel. It is like revisiting one's childhood."

### The Author

Sam Vaknin is the author of Malignant Self Love - Narcissism Revisited and After the Rain - How the West Lost the East. He is a columnist for Central Europe Review and eBookWeb , a United Press International (UPI) Senior Business Correspondent, and the editor of mental health and Central East Europe categories in The Open Directory and Suite101.

Until recently, he served as the Economic Advisor to the Government of Macedonia.

Visit Sam's Web site at <http://samvak.tripod.com>

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